

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Mark D. Flanagan
(Covering for Honorable Jeffrey B. El-Hajj)**

B. Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2228

DATE: August 4, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all parties before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 2	25CV458338	Steadfast Insurance Company v. Aratex Services, Inc. et al.	In this action for declaratory and other relief, Defendant Vestis Services, LLC filed a demurrer to the original complaint. Plaintiff Steadfast Insurance Company filed in response a notice that it had responded to the demurrer by filing a First Amended Complaint (“FAC”) on July 14, 2026, rendering the demurrer moot. An amended filing would indeed moot the demurrer. However, as Plaintiff is evidently unaware, also on July 14, the clerk rejected the FAC on the grounds it failed to name all parties (“et al.” being insufficient) on the caption or in the body of the FAC. Plaintiff is ordered to immediately file a procedurally adequate FAC. The demurrer will be rendered moot if the FAC is filed by August 7, 2026. If it is not, the Court will re-schedule a hearing on the demurrer. 3 IT IS SO ORDERED. Plaintiff to prepare final order for court’s signature

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LINE #	CASE #	CASE TITLE	RULING
LINE 3	25CV472404	Theerapong Surinsuk v. Volkswagen Group of America Inc. et al.	Off-calendar, case has settled.